

Before the
FEDERAL MARITIME COMMISSION

Washington, D.C. 20573

Docket No. 23-02

20230930-DK-BUTTERFLY-1, INC. f/k/a/ BED BATH & BEYOND INC. v.
ORIENT OVERSEAS CONTAINER LINE LIMITED AND OOCL (EUROPE) LIMITED

**RESPONDENTS' REPLY IN SUPPORT OF PARTIALLY UNOPPOSED MOTION TO
EXTEND DEADLINE AND INCREASE PAGE LIMIT**

Respondents Orient Overseas Container Line Limited and OOCL (Europe) Limited (“Respondents” or “OOCL”) respectfully replies to Complainant’s now opposition to Respondents’ partial opposition to move to extend the deadline to file exceptions in this case under 46 C.F.R. ¶ 502.227(a) from 22 to 82 days and to increase the page limit for exceptions under 46 C.F.R. § 502.227(e) from 50 to 100 pages.

Respondents do not oppose an extension of time to sixty days for Complainant to reply to Respondents’ exceptions and join with Complainant in requesting same. Since this was not a joint motion, the undersigned assumed that Complainant would move for a similar extension and Respondents would not oppose same. Nevertheless, Respondents consent to such relief and request the Commission to grant same.

As to the briefing length, the ALJ’s Initial Decision (“ID”) was 203 pages single spaced. If Respondents are limited to 50 pages double-spaced, they will have to respond in essence to an ID that is eight times in length to the exceptions page limit under the rules. Respondents are not asking for a length equivalent to the ALJ’s ID, but it is hardly equitable to constrain Respondents to a brief length that will not afford Respondents the opportunity to address what they consider to

be numerous and serious legal and factual errors in that decision. Respondents have presented good cause for an increase in page length and reiterate their request for same.

DATED: April 29, 2026

Respectfully submitted,

/s/ Keith B. Letourneau

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CERTIFICATE OF SERVICE

I hereby certify that on the 29th day of April 2026, a true and correct copy of the foregoing Motion to Extend Deadlines and Increase Page Limit was served by email on all counsel of record in accordance with 46 CFR Part 502 and the Commission's Order of May 12, 2020.

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